

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER JEAN PHILLIPS,

Petitioner

VS.

DAVID ERIC PHILLIPS-KERLEY,

Respondent

) Case Number: FDI-23-798937

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The Court has been notified by the San Francisco Bar Association that attorney Don Emley is willing to accept appointment as Husband's contempt counsel. However, in light of the fact that Husband's financial circumstances have purportedly changed, the Court needs to assess whether Husband still qualifies for appointment of contempt counsel. The Court also needs to determine whether to consolidate the hearing on Wife's Order to Show Cause Re: Contempt filed 11/13/2025 with the hearing on Wife's Order to Show Cause Re: Contempt filed 4/24/2026. The parties are ordered to appear.

- 1) The parties in this matter are Petitioner Jennifer Jean Phillips (Wife) and Respondent David Eric Phillips-Kerley (Husband). The parties married on 1/3/1998. Wife contends the parties' date of separation is 3/31/2023, for a marriage of 25 years and 3 months. Husband contends the date of separation is "to be determined." Wife is self-represented. Husband is represented by attorney Steve Whitworth.
- 2) On for hearing is Wife's Order to Show Cause Re: Contempt filed 11/13/2025. Among other counts alleged, Wife alleges Husband failed to serve his Preliminary Declaration of Disclosure,

1 failed to reopen a required joint community account, failed to deposit Court-ordered funds back
2 into said account, failed to provide Wife with access credentials to the account, transferred funds
3 despite orders to freeze community accounts, withdrew \$29,000 from Husband's deferred
4 compensation account in April 2024 in violation of Family Code section 2040(a)(2), withdrew
5 \$11,000 from the deferred compensation account in October 2024 in violation of Family Code
6 section 2040(a)(2)), failed to pay forensic accountant fees as ordered, failed to pay attorney's fees
7 sanctions as ordered, and ceased paying the mortgage on the marital residence.

- 8 3) The hearing on Wife's Order to Show Cause Re: Contempt filed 11/13/2025 has been continued
9 several times and Husband has not yet been arraigned. At the prior 12/3/2025 hearing, the Court
10 made a finding that Husband was eligible for appointment of contempt counsel. At the prior
11 1/20/2026 hearing, the Court appointed attorney Terry Szusko and his law office as contempt
12 counsel for Husband. At the 1/20/2026 hearing, Mr. Szusko also stated that Father waives time.
13 The hearing on Wife's Order to Show Cause Re: Contempt was most recently continued from
14 3/13/2026 to 5/7/2026 because Husband's formerly appointed contempt counsel requested to be
15 relieved from his appointment.
- 16 4) The Court also notes that Wife filed a second Order to Show Cause Re: Contempt on 4/24/2026
17 that is currently set for hearing on 7/2/2026. There is currently no Proof of Service on file yet for
18 this second Order to Show Cause Re: Contempt.
- 19 5) **The Court has been notified by the San Francisco Bar Association that attorney Don Emley**
20 **is willing to accept appointment as Husband's contempt counsel. However, in light of the**
21 **fact that Husband's financial circumstances have purportedly changed, the Court needs to**
22 **assess whether Husband still qualifies for appointment of contempt counsel. The Court also**
23 **needs to determine whether to consolidate the hearing on Wife's Order to Show Cause Re:**
24 **Contempt filed 11/13/2025 with the hearing on Wife's Order to Show Cause Re: Contempt**
25 **filed 4/24/2026. The parties are ordered to appear.**
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